

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2824

By: Steagall

AS INTRODUCED

An Act relating to firearms; amending 21 O.S. 2021, Section 1289.7a, which relates to the Oklahoma Firearms Act of 1971; deleting liability provision; prohibiting the establishment or enforcement of certain policy or rule; removing exception and applicability provision; amending 21 O.S. 2021, Section 1290.22, which relates to the Oklahoma Self-Defense Act; clarifying certain prohibited conduct and exception; providing for the filing of a civil action; directing court to award damages and fees; making certain provisions inapplicable to the Administrative Workers' Compensation Act; updating liability provisions; allowing employees to transport firearms or legal weapons in motor vehicles; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1289.7a, is amended to read as follows:

Section 1289.7a. A. No person, property owner, tenant, employer, or business entity shall maintain, establish, or enforce any policy or rule that has the effect of prohibiting any person, except a convicted felon, from transporting and storing firearms or

1 ammunition in a locked motor vehicle, or from transporting and
2 storing firearms or ammunition locked in or locked to a motor
3 vehicle on any property set aside for any motor vehicle.

4 B. No person, property owner, tenant, employer, or business
5 entity shall ~~be liable in any civil action for occurrences which~~
6 ~~result from the storing of~~ establish or enforce any policy or rule
7 that prohibits any person or employee, except a convicted felon,
8 from transporting, carrying, or storing firearms or ammunition in a
9 locked motor vehicle on any property set aside for any motor
10 vehicle, ~~unless the person, property owner, tenant, employer, or~~
11 ~~owner of the business entity commits a criminal act involving the~~
12 ~~use of the firearms or ammunition. The provisions of this~~
13 ~~subsection shall not apply to claims pursuant to the Workers'~~
14 ~~Compensation Act~~ or a motor vehicle owned, leased, or rented by the
15 person or employee to conduct business for the business entity.

16 C. An individual may bring a civil action to enforce this
17 section. If a plaintiff prevails in a civil action related to the
18 personnel manual against a person, property owner, tenant, employer
19 or business for a violation of this section, the court shall award
20 actual damages, enjoin further violations of this section, and award
21 court costs and attorney fees to the prevailing plaintiff.

22 D. As used in this section, "motor vehicle" means any
23 automobile, truck, minivan, sports utility vehicle, motorcycle,
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1 motor scooter, and any other vehicle required to be registered under
2 the Oklahoma Vehicle License and Registration Act.

3 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1290.22, is
4 amended to read as follows:

5 Section 1290.22.

6 BUSINESS PRIVATE PROPERTY OWNER'S RIGHTS

7 A. Except as provided in subsections B, C and D of this
8 section, nothing contained in any provision of the Oklahoma Self-
9 Defense Act shall be construed to limit, restrict or prohibit in any
10 manner the existing rights of any person, property owner, tenant,
11 employer, liquor store, place of worship or business entity to
12 control the possession of weapons on any property owned or
13 controlled by the person or business entity.

14 B. 1. No person, property owner, tenant, employer, liquor
15 store, holder of an event permit, place of worship or business
16 entity shall be permitted to establish any policy or rule that ~~has~~
17 ~~the effect of prohibiting~~ prohibits any person, except a convicted
18 felon, from transporting and storing firearms in a locked motor
19 vehicle on any property set aside for any motor vehicle or from
20 transporting, carrying, or storing firearms or ammunition in a motor
21 vehicle owned, leased, or rented by the person or employee while
22 conducting business for the business entity.

23 2. An individual may bring a civil action to enforce the
24 provisions of paragraph 1 of this subsection. If a plaintiff

1 prevails in a civil action against a person, property owner, tenant,
2 employer, liquor store, place of worship or business, for a policy
3 or rule that violates paragraph 1 of this subsection, the court
4 shall award actual damages, enjoin further violations of paragraph 1
5 of this subsection, and award court costs and attorney fees to the
6 prevailing plaintiff. The provisions of this subsection shall not
7 apply to claims pursuant to the Administrative Workers' Compensation
8 Act.

9 C. A property owner, tenant, employer, liquor store, place of
10 worship or business entity may prohibit any person from carrying a
11 concealed or unconcealed firearm on the property. If the building
12 or property is open to the public, the property owner, tenant,
13 employer, liquor store, place of worship or business entity shall
14 post signs on or about the property stating such prohibition.

15 D. No person, property owner, tenant, employer, liquor store,
16 holder of an event permit, place of worship or business entity shall
17 be permitted to establish any policy or rule that has the effect of
18 prohibiting any person from carrying a concealed or unconcealed
19 firearm on property within the specific exclusion provided for in
20 paragraph 4 of subsection B of Section 1277 of this title; provided
21 that carrying a concealed or unconcealed firearm may be prohibited
22 in the following places:

23 1. The portion of a public property structure or building
24 during an event authorized by the city, town, county, state or

1 federal governmental authority owning or controlling such building
2 or structure;

3 2. Any public property sports field including any adjacent
4 seating or adjacent area set aside for viewing a sporting event,
5 where an elementary or secondary school, collegiate, or professional
6 sporting event or an International Olympic Committee or organization
7 or any committee subordinate to the International Olympic Committee
8 event is being held;

9 3. The fairgrounds during the Oklahoma State Fair or the Tulsa
10 State Fair; and

11 4. The portion of a public property structure or building that
12 is leased or under contract to a business or not-for-profit entity
13 or group for offices.

14 E. The otherwise lawful carrying of a concealed or unconcealed
15 firearm by a person on property that has signs prohibiting the
16 carrying of firearms shall subject the person to being denied
17 entrance onto the property or removed from the property. If the
18 person:

19 1. Has been informed by the property owner, business entity or
20 manager of the business that the person is in violation of a policy
21 that prohibits firearms on the property; and

22 2. Refuses to leave the property and a peace officer is
23 summoned, the person shall, upon conviction, be guilty of a
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1 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
2 Dollars (\$250.00).

3 F. A person, property owner, tenant, employer, liquor store,
4 holder of an event permit, place of worship or business entity that
5 does or does not prohibit any individual, except a convicted felon,
6 from carrying a loaded or unloaded, concealed or unconcealed weapon
7 on property that the person, property owner, tenant, employer,
8 liquor store, holder of an event permit, place of worship or
9 business entity owns, or has legal control of, ~~is immune from~~ shall
10 not be subject to any liability arising from that decision. Except
11 for acts of gross negligence or willful or wanton misconduct, an
12 employer who does or does not prohibit his or her employees from
13 carrying a concealed or unconcealed weapon ~~is immune from~~ shall not
14 be subject to any liability arising from that decision. A person,
15 property owner, tenant, employer, liquor store, holder of an event
16 permit, place of worship or business entity that does not prohibit
17 persons from carrying a concealed or unconcealed weapon pursuant to
18 subsection D of this section shall not be ~~immune from~~ subject to any
19 liability arising from the carrying of a concealed or unconcealed
20 weapon, while in the scope of employment, on the property or in or
21 about a business entity motor vehicle. Any employee, using his or
22 her own private motor vehicle or a motor vehicle that is personally
23 rented or leased by the employee, may transport a firearm or other
24 legal weapon in the motor vehicle while conducting business for the

1 business entity and shall not be prohibited from transporting such
2 firearm or weapon by any policy or rule of the business entity. The
3 provisions of this subsection shall not apply to claims pursuant to
4 the Administrative Workers' Compensation Act.

5 G. It shall not be considered part of an employee's job
6 description or within the employee's scope of employment if an
7 employee is allowed to carry or discharge a weapon pursuant to this
8 section.

9 H. Nothing in subsections F and G of this section shall prevent
10 an employer, employee or person who has suffered loss resulting from
11 the discharge of a weapon to seek redress or damages of the person
12 who discharged the weapon or used the weapon outside the provisions
13 of the Oklahoma Self-Defense Act.

14 I. As used in this section, "motor vehicle" means any
15 automobile, truck, minivan, sports utility vehicle, motorcycle,
16 motor scooter, and any other vehicle required to register under the
17 Oklahoma Vehicle License and Registration Act.

18 SECTION 3. This act shall become effective November 1, 2025.
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